

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX**

KENNETH BROWN

INDEX NO.: 24870/2015E

Plaintiffs,

– against –

**CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, POLICE OFFICER JAMES
RODRIGUEZ, POLICE OFFICER JOHN DOE and
POLICE OFFICER JOHN ROE**

**AMENDED VERIFIED
COMPLAINT**

Defendant(s).

Plaintiff, by his attorney, **NEIL WOLLERSTEIN, ESQ.**, complaining of the defendants, respectfully shows to this Court and alleges the following upon information and belief:

1. That at all times the Plaintiff **KENNETH BROWN** was and is a resident of Bronx County, State of New York.
2. That at all times hereinafter mentioned, the defendant, **CITY OF NEW YORK**, hereinafter referred to as “CITY”, was and still is a municipal corporation organized and existing under and by virtue of the laws of the State of New York.
3. That at all times hereinafter mentioned the defendant, **NEW YORK CITY POLICE DEPARTMENT**, hereinafter referred to as “NYPD”, was and is an agency of the defendant, CITY.
4. That on and prior to 6/19/15 and at all times hereinafter mentioned the defendant, **POLICE OFFICER JAMES RODRIGUEZ** (Tax No. 940575), hereinafter referred to as “RODRIGUEZ” was and is a police officer employed by the defendant NYPD, and at all times herein was acting in such capacity as the agent, servant and employee of the CITY and NYPD.
5. That on and prior to 6/19/15 and at all times hereinafter mentioned the defendant, **POLICE OFFICER JOHN DOE**, hereinafter referred to as “DOE” was and is a police officer

employed by the defendant NYPD, and at all times herein was acting in such capacity as the agent, servant and employee of the CITY and NYPD.

6. That on and prior to 6/19/15 and at all times hereinafter mentioned the defendant, POLICE OFFICER JOHN ROE, hereinafter referred to as "ROE" was and is a police officer employed by the defendant NYPD, and at all times herein was acting in such capacity as the agent, servant and employee of the CITY and NYPD.

7. Upon information and belief, at all times hereinafter mentioned, and on 6/19/15, at approximately 6:30 a.m., several police officers including but not limited to RODRIGUEZ, DOE and ROE were on duty and in the vicinity of 281 East 143rd Street, County of Bronx, City and State of New York.

8. Upon information and belief, at all times hereinafter mentioned, and on 6/19/15, at approximately 6:30 a.m., the above mentioned Police Officers were acting within the scope of their employment and under the direction of the CITY and NYPD as its agents, servants and/or employees.

9. Upon information and belief, defendants RODRIGUEZ, DOE and ROE were all assigned to the 40th Precinct.

10. That on and prior to 6/19/15 RODRIGUEZ, DOE and ROE were each individually hired, screened, tested, interviewed, trained, retrained, investigated, monitored and supervised by the CITY and NYPD.

11. That on and prior to 6/19/15, at approximately 6:30 a.m., and all relevant times herein after, RODRIGUEZ, DOE and ROE individually and/or collectively were acting pursuant to and under the rules and regulations of the New York City Patrol Guidelines.

12. That on 6/19/15, at approximately, 6:30 a.m., Plaintiff **KENNETH BROWN** was

lawfully in the vicinity of 281 East 143rd Street, County of Bronx, State of New York and doing nothing illegal, improper or acting suspicious in anyway. In point of fact, Plaintiff **KENNETH BROWN** was not in possession of any contraband on his person and was entirely unaware of any contraband on the premises if there were was indeed any at all (which there was not).

13. That on 6/19/15, at approximately, 6:30 a.m., in the vicinity of 281 East 143rd Street, County of Bronx, State of New York, RODRIGUEZ, DOE and ROE, absent an arrest warrant, probable cause, reasonable cause or any legal justification, and based on fraud, perjury and misrepresentations, approached Plaintiff **KENNETH BROWN** for no reason and summarily stopped, frisked, searched, grabbed, assaulted, battered, and detained him in an aggressive and excessive manner.

14. Upon information and belief RODRIGUEZ, DOE and ROE knew or had reason to know that their actions lacked any legal justification in approaching, searching, seizing and arresting Plaintiff **KENNETH BROWN**.

15. Upon information and belief, Plaintiff **KENNETH BROWN** was subjected to a strip search while in the custody of defendants without any legal reason or justification.

16. That Plaintiff **KENNETH BROWN** was arraigned after his arrest and thereafter falsely and maliciously prosecuted with committing a crime or crimes.

17. Thereafter, Plaintiff **KENNETH BROWN** remained incarcerated for over 24 hours and was required to make numerous court appearances over an extended period of time until all charges against him were summarily dismissed on 8/4/15.

18. Plaintiff **KENNETH BROWN** sustained physical and emotional pain and injuries as a result of this incident.

19. That within ninety (90) days after the causes of actions accrued herein, and more than

thirty (30) days prior to the commencement of this action, the Plaintiff **KENNETH BROWN** caused the notice of claim, in writing, sworn to by and on behalf of the claimants, the Plaintiff herein, containing the statement of the name and place of residence of the claimants by the street and number and their attorney, and describing the time when the particular claim and circumstances under which the damages and injuries were sustained, the cause thereof, and so far as practical, the nature and extent of the injuries to be personally served upon the defendant CITY, their agents, servants and/or employees at the Law Department,

20. This action was so commenced within one (1) year and ninety (90) days after said cause of action accrued herein, and for more than thirty (30) days prior to the commencement of this action, defendant CITY neglected, refused and failed to make an adjustment of said claim, and said claim remains unadjusted and unpaid, although plaintiff herein has requested and demanded that the same be paid and adjusted.

21. That the defendants requested an oral examination pursuant to General Municipal Law Section 50-H and same was held.

AS AND FOR A FIRST CAUSE OF ACTION ON BEHALF OF
PLAINTIFF KENNETH BROWN

22. Plaintiff **KENNETH BROWN** repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 – 21 with the same force and effect as if fully set forth at length herein.

23. That on or about 6/19/15, at approximately 6:30 a.m., the Plaintiff **KENNETH BROWN** was without just cause, probable cause or provocation, based on fraud, perjury and misrepresentations. and with reckless, negligent and callous disregard for the truth, and without investigation, touched, grabbed, handcuffed, seized and arrested in an excessive manner and with

excessive force by CITY, NYPD, RODRIGUEZ, DOE and ROE, their agents, servants and/or employees, and in particular, by RODRIGUEZ, DOE and ROE.

24. That on or about 6/19/15, at approximately 6:30 a.m., the Plaintiff **KENNETH BROWN** while lawfully in the vicinity of 281 East 143rd Street, County of Bronx, City and State of New York, was without just cause, probable cause or provocation, maliciously, intentionally and falsely accused by CITY, NYPD, RODRIGUEZ, DOE and ROE of having a crime or crimes.

25. That on or about 6/19/15, and upon arresting the Plaintiff **KENNETH BROWN** and depriving him of his liberty, CITY, NYPD, RODRIGUEZ, DOE and ROE took the Plaintiff **KENNETH BROWN** to a police station in the County of Bronx and entered him on the records as under arrest.

26. That on or about 6/19/15, the CITY, NYPD, RODRIGUEZ, DOE and ROE further caused Plaintiff **KENNETH BROWN** to have his fingerprints and photographs to be taken without his consent and in accordance with police procedures for the arrest of criminals and held him on various criminal charges at various police stations, correctional facilities and at the Courthouse located at 215 East 161st Street, County of Bronx, City and State of New York.

27. That on or about 6/19/15 Plaintiff **KENNETH BROWN** was aware of his arrest and confinement, he did not consent to his arrest or confinement, and said confinement, seizure, arrest and detention was without legal justification.

28. That at all times hereinafter mentioned the actions of CITY, NYPD, RODRIGUEZ, DOE and ROE as described above were carried out in a reckless, deliberate, willful, wanton, malicious and grossly negligent manner.

29. That by reason of the foregoing, Plaintiff **KENNETH BROWN** has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

AS AND FOR A SECOND CAUSE OF ACTION ON BEHALF OF
PLAINTIFF KENNETH BROWN

30. Plaintiff **KENNETH BROWN** repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 – 29 with the same force and effect as if fully set forth at length herein.

31. That on or about 6/19/15 , a criminal complaint was issued by the CITY, NYPD, RODRIGUEZ, DOE and ROE, their agents, servants and/or employees, without probable cause, reasonable cause or legal justification and based on fraud, perjury and misrepresentations.

32. That on or about 6/19/15 a criminal action against Plaintiff **KENNETH BROWN** was commenced by CITY, NYPD, RODRIGUEZ, DOE and ROE, their agents, servants and/or employees, without probable cause, reasonable cause or legal justification.

33. That solely as a result of the aforesaid, the Plaintiff **KENNETH BROWN'S** life was interfered with.

34. That the criminal action against Plaintiff **KENNETH BROWN** was continued for an extended period of time by defendants with malice and bad faith.

35. That solely as a result of the false arrest, assault, battery, false imprisonment and malicious prosecution of the Plaintiff **KENNETH BROWN**, he was deprived of his liberty for an extended period of time and was subjected to scorn, ridicule, embarrassment and was degraded in the esteem of the community both personally and professionally.

36. That on or about 8/4/15 the criminal action against Plaintiff **KENNETH BROWN** was terminated favorably by dismissal.

37. That the actions of CITY, NYPD, RODRIGUEZ, DOE and ROE as described above were carried out in a reckless, deliberate, willful, wanton, malicious and grossly negligent manner.

2 38. That by reason of the foregoing, Plaintiff **KENNETH BROWN** has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

**AS AND FOR A THIRD CAUSE OF ACTION ON BEHALF OF
PLAINTIFF KENNETH BROWN**

39. Plaintiff **KENNETH BROWN** repeats, reiterates and realleges each and every — allegation contained in paragraphs numbered 1 – 38 with the same force and effect as if fully set forth at length herein.

40. That on or about 6/19/15, and while in the custody of the defendants in the County of Bronx, City of New York, the Plaintiff **KENNETH BROWN** was intentionally touched, pushed, — assaulted, battered, violated, strip searched, humiliated, photographed and handcuffed by the CITY, NYPD, RODRIGUEZ, DOE and ROE, who were acting within the scope of their employment and authority in such a manner as to knowingly cause injury to plaintiff.

41. That on or about 6/19/15 CITY, NYPD, RODRIGUEZ, DOE and ROE, their agents, servants and employees, acting as agents and on behalf of the CITY, NYPD, RODRIGUEZ, DOE — and ROE, within the scope of their employment, did intentionally, willfully and maliciously assault and batter the Plaintiff **KENNETH BROWN** in that they have the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to the Plaintiff **KENNETH BROWN** and their act caused apprehension of such contact in the plaintiff, and in a hostile and/or offensive manner touched and beat the plaintiff and/or offensive bodily contact to the Plaintiff **KENNETH BROWN** and caused such battery in and about his head, neck, back, body and limbs.

— 42. That by reason of the aforesaid intentional assault and battery which was committed in an excessive manner and with excessive force and without legal justification or privilege by the

defendants, their agents, servants and employees, who were acting within the scope of their employment and authority and without any probable or reasonable cause, Plaintiff **KENNETH BROWN** suffered great and permanent bodily injury in and about his head, neck, back, body and limbs and was rendered sick, sore, lame and disabled, and suffered conscious pain and suffering, and that he was otherwise damaged.

43. That as a result of the aforesaid assault and battery the Plaintiff **KENNETH BROWN** was caused to sustain serious, severe, painful and permanent bodily injuries so that he was rendered sick, sore, lame and disabled and so remains and was and will be compelled to seek medical aid and attention and incur expenses for same in an endeavor to cure himself of his said injuries and he was and will be prevented from attending his usual occupation and duties.

44. That at all times hereinafter mentioned the actions of CITY, NYPD, DOE and ROE as described above were carried out in a reckless, deliberate, willful, wanton, malicious and grossly negligent manner.

45. That by reason of the foregoing, Plaintiff **KENNETH BROWN** has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

AS AND FOR A FOURTH CAUSE OF ACTION ON BEHALF OF
PLAINTIFF KENNETH BROWN

46. Plaintiff **KENNETH BROWN** repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 – 45 with the same force and effect as if fully set forth at length herein.

47. That the CITY, NYPD, their agents, servants and employees were negligent, careless and reckless in hiring, retaining, training, monitoring, retraining, supervising and promoting its employees including but not limited to RODRIGUEZ, DOE and ROE, in that said police officers, as

employees of CITY and NYPD, were not qualified to be hired or retained or promoted as police officers, lacked the experience, skill, training and ability to be employed, retained and utilized in the manner that each was employed by CITY and NYPD.

48. That the CITY and NYPD failed to exercise due care and caution in its hiring, retaining, training and/or promoting practices in that CITY and NYPD failed to adequately test, analyze test results, and/or investigate above mentioned police officers backgrounds and performances.

49. That the CITY and NYPD failed to exercise due care and caution in its hiring, retaining, training and/or promoting practices in that CITY and NYPD failed to adequately screen said police officers, failed to adequately monitor said police officers, and failed to adequately discipline said police officers when they violate Patrol Guidelines.

50. Defendant CITY and NYPD were also negligent in that prior to and at the time of the acts complained of herein, due to the prior history of the police officer defendants named herein, knew or should have known of the bad disposition of said defendants, or at the very least had knowledge of facts that would put a reasonably prudent employer on inquiry concerning their bad disposition and the fact that defendant police officers were not suitable to be hired and employed by the CITY and NYPD and that due to their lack of training, these officers should have had adequate supervision so that they would not arrest innocent individuals nor use excessive force during the arrest process.

51. That by reason of the above, the Plaintiff **KENNETH BROWN** was injured in mind and body as he was arrested, prosecuted and rendered sick, sore, and damaged.

52. That at all times hereinafter mentioned the actions of CITY, NYPD and all defendants herein as described above were carried out in a reckless, deliberate, willful, wanton, malicious and

grossly negligent manner.

53. That by reason of the foregoing, Plaintiff **KENNETH BROWN** has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

**AS AND FOR A FIFTH CAUSE OF ACTION ON BEHALF OF
PLAINTIFF KENNETH BROWN**

54. Plaintiff **KENNETH BROWN** repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1-53 with the same force and effect as if fully set forth at length herein.

55. In arresting Plaintiff **KENNETH BROWN**, police officers including but not limited to RODRIGUEZ, DOE and ROE, acting in their capacity as agents, servants and employees of CITY and NYPD, were motivated by an ulterior purpose to do harm, without justification or economic or social excuse.

56. In arresting Plaintiff **KENNETH BROWN**, police officers including but not limited to RODRIGUEZ, DOE and ROE, acting in their capacity as agents, servants and employees of CITY and NYPD, sought either a detriment to Plaintiff **KENNETH BROWN** or a collateral advantage to the CITY and NYPD that is outside the legitimate ends of effectuating an arrest.

57. As a result of the abuse of process by defendants herein, Plaintiff **KENNETH BROWN** sustained multiple injuries including but not limited to loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for his safety.

58. That at all times hereinafter mentioned the actions of CITY, NYPD and all defendants herein as described above were carried out in a reckless, deliberate, willful, wanton, malicious and grossly negligent manner.

59. That by reason of the foregoing, Plaintiff **KENNETH BROWN** has been damaged in

an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

WHEREFORE, the Plaintiff **KENNETH BROWN** demands judgment against the defendants on the First Cause of Action through the Fifth Cause of Action in a sum that exceeds the jurisdictional limits of all lower trial courts of this state for each cause of action, all together with attorney's fees, punitive damages and the costs and disbursements of this action.

Dated: Bronx, New York
 October 5, 2015

Yours, etc.,

A handwritten signature in black ink, appearing to read 'Neil Wollerstein', written over a horizontal line.

NEIL WOLLERSTEIN, ESQ.

Attorney for Plaintiff
895 Sheridan Avenue
Bronx, NY 10451
(718) 588-1300

VERIFICATION

STATE OF NEW YORK }

COUNTY OF BRONX }

SS: _____

I, Kenneth Brown, being duly sworn, say:

1. I am the plaintiff in the within action.

2. I have read the attached Amended Complaint and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe to be true.

Sworn to before me this

6 day of October, 2015

NEIL WOLLENBERG
Notary Public, State of New York
No. 02WO6104776
Qualified in New York County
Commission Expires February 2, 2016

Neil Wollenberg

Kenneth Brown

